

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, JULY 30, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**COLUMBUS ALLEN v. CALIFORNIA DEPARTMENT OF CORRECTIONS
CASE NO. CL26-04195**

Demurrer

TENTATIVE RULING:

Parties to appear.

It appears that Plaintiff has another case pending in Stanislaus County involving these same claims that was filed May 10, 2024. (Request Judicial Notice p. 17.) This case is separate from the case filed in Alameda that was transferred to Solano County.

Two actions involving the same claims cannot be pending in two separate superior courts. The court intends to exercise its discretion to stay this pending action until completion of the Stanislaus action.

**MELISSA JOSEPHINE FLUTY on behalf of herself and others similarly situated v.
ZEPEXCO, INC., et al.
Case No. CU23-05443**

Motion for Preliminary Approval of Class Action Settlement

TENTATIVE RULING:

Plaintiff MELISSA JOSEPHINE FLUTY ("Plaintiff" or "FLUTY") moves for preliminary approval of a proposed class action and PAGA settlement. Moving papers were initially filed March 18, 2025. On August 13, 2025, the court identified several

questions and/or issues. The matter was continued to October 15, 2025, to permit supplemental briefing. Supplemental briefing was not timely filed. Additional declarations were filed on October 15, 2025, preventing the court from reviewing the supplemental briefing prior to the hearing.

On November 12, 2025, the court issued a tentative ruling that it intended to deny the motion without prejudice on the basis that Plaintiff failed to establish that she is an appropriate representative for the proposed class and was inadequate to represent the members of the class based upon the significant discount in the settlement. On November 13, 2025, the court agreed to continue the matter to February 6, 2026, for supplemental briefing. No supplemental briefing was submitted. Instead, on February 4, 2026, the parties submitted a stipulation to continue the motion. The court continued the hearing to July 30, 2026.

Overview of Preliminary Approval of Class Action and PAGA Settlement

Before granting final approval of class settlements, courts grant preliminary approval of the class settlement, grant conditional certification of the class, approve the forms and methods of class notice, and set a final hearing.

In determining whether a class settlement is fair, adequate and reasonable, the court considers relevant factors, including: (1) the strength of plaintiffs' case; (2) the risk, expense, complexity and likely duration of further litigation; (3) the risk of maintaining class action status through trial; (4) the amount offered in settlement; (5) the extent of discovery completed and the stage of the proceedings; (6) the experience and views of counsel; (7) the presence of a governmental participant; and (8) the reaction of the class members to the proposed settlement. The list of factors is not exclusive, and the court is free to engage in a balancing and weighing of factors depending on the circumstances of each case.

Although the court gives regard to what is otherwise a private consensual agreement between the parties, the court must also evaluate the proposed settlement agreement with the purpose of protecting the rights of the absent class members who will be bound by the settlement and to ensure the absence of fraud, overreaching or collusion between the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned. The court uniquely serves as the gatekeeper to protect the interests of the putative class and PAGA group.

The burden is on the proponent of the settlement to show that it is fair and reasonable. However, a presumption of fairness exists where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.

(See *Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 244-45.)

Proposed Settlement

Notably, the moving papers seek preliminary approval of a class action and PAGA settlement and allege compliance with notice to the LWDA. Reviewing the complaint

and First Amended Complaint, the court did not see a PAGA cause of action having been plead. Counsel to address.

This action alleging Labor Code violations involving wage and hour matters, failure to reimburse business expenses and unfair competition was filed on November 17, 2023. A First-Amended Complaint was filed on January 23, 2024. No Defendant has ever filed a responsive pleading to either complaint. Each generally appeared and satisfied appearance fees by filing a case management conference statement.

The parties engaged in mediation with Brandon McKelvey, an experienced age and hour class action mediator.

Plaintiff seeks approval and certification of a class action and PAGA settlement representing 303 putative class and group members of non-exempt employees in the gross amount of \$619,500. \$50,000 of this amount is assigned to the PAGA claims with 75% (\$37,500) allocated to LWDA.

The class members are defined as all persons employed in California as non-exempt employees between November 17, 2022 and October 19, 2024. Aggrieved employees are persons employed in California and classified as non-exempt during the same dates. 255 of the class members are associated to Benicia with the balance working in Southern California. 89 are delivery drivers, 47 of whom are subject to a collective bargaining agreement that does not provide a grievance procedure for wage and hour issues. However, Plaintiff attests that commonality exists as all members of the class or who are aggrieved under PAGA as they uniformly have issues arising from the application of the same wage and hour policies across the board to non-exempt employees. Commonality of claims exists and the number of participants render a class action an appropriate tool.

The average gross individual settlement for each class member is \$1,004.95. In addition, each of the eligible aggrieved employees will receive a fraction of the 25% (\$12,500) of the PAGA settlement.

Plaintiff's counsel attests to being experienced in class action litigation and consulted experts in evaluating a potential recovery. (Kim Decl., 3/18/25, p. 3.) The pleadings establish the following analysis:

Claim	Best Case	Risk Reduction	Realistic Exposure
Reimbursement	\$73,731	80%	\$14,746
Underpaid wages	\$134,588	80%	\$26,917.60
Meal Period	\$714,593	80%	\$142,918.60
Rest periods	\$1,875,963	80%	\$375,192.60
Wage Statement	\$269,900	80%	\$53,980
Final Wages	\$1,183,258	80%	\$236,651.60
PAGA	\$275,800	82%	\$50,000

Candidly, the 80% blanket risk reduction for each category of damages is higher than most risk offsets in wage and hour class action settlements of this nature that the court sees. Risk reductions frequently range from 20-75% linked to a particular category of damages. And typically the same risk reduction offset is not blanketly used for each individual category of damages. A party moving for preliminary approval should provide a factual and evidentiary foundation for how case-specific risk factors warrant the specific risk reduction. It may be reasonable to settle a weak claim for relatively little, while it is not reasonable to settle a strong claim for the same amount. Generic recitation of risk does not allow a court to determine whether the applied discounts are appropriate.

As to the PAGA settlement, the settlement appears fair, reasonable and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones and to maximize enforcement of state labor laws. (See *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 77.)

Settlement Administrator

The fee of \$8500 for Phoenix Settlement Administrators is reasonable.

Incentive Payments

Incentive payments to class representatives "must not be disproportionate to the amount of time and energy expended in pursuit of the lawsuit." (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1395.) The court must also consider the "risk to the class representative in commencing suit" and any "notoriety and personal difficulties" he or she encounters as a result of the litigation. (*Id.* at 1394.)

The proposed payment of \$5000 to the representative appears reasonable.

Attorney's Fees and Costs

As to attorneys' fees, calculations using 25% and 30% of the gross settlement should be included in the final approval moving papers. As part of final approval, the court will require evidence of actual hours expended by the representative and legal counsel.

Costs of \$20,061 are not unreasonable.

Notice

A modified notice was attached to the October 15, 2025, Declaration of Enoch Kim and addressed the court's previously stated issues.

Ruling

Parties to appear. In addition to the PAGA issue, moving party should be prepared to explain the rationale for 80% risk adjustment for each category of individual damages.

JERRY DON MCEVER II v. BLUE MOUNTAIN CONSTRUCTION SERVICES, INC.
Case No. CU26-00043

Defendant's Motion to Compel Arbitration

TENTATIVE RULING

Absent the employment relationship being governed by a collective bargaining agreement, California law exempts from arbitration claims for due and unpaid wages. (Lab. Code, § 229.) However, California law is preempted by the Federal Arbitration Act ("FAA") when the contract at issue evidences a transaction involving interstate commerce. (9 U.S.C. § 2; *Perry v. Thomas* (1987) 482 U.S. 483, 490-491.) 9 U.S.C. §2, is to be read broadly, to apply to any contracts involving or affecting interstate commerce, "even if the parties did not contemplate an interstate commerce connection". (*Allied-Bruce Terminix Cos. v. Dobson* (1995) 513 U.S. 265, 275-277, 281.)

The burden of proof falls on the party seeking to enforce the arbitration agreement to show that it involves interstate commerce. (*Lane v. Francis Capital Management LLC* (2014) 224 Cal.App.4th 676, 687-688 ["a petitioner seeking an order to compel arbitration must show that the subject matter of the agreement involves interstate commerce"].

Notably, the arbitration agreement before the court does not expressly invoke the FAA and states that California law governs. It therefore appears the arbitration agreement before the court is controlled by California law and not preempted by the Federal Arbitration Act. Untimely information cannot be submitted by a moving party on reply; thus it is a moving party's burden to establish that an arbitration agreement involves interstate commerce in its initial papers, and Defendant did not make such a showing in its initial motion. Given that the arbitration agreement expressly provides it is controlled by California law this seems a moot issue out the gate.

Neither party addresses the effect of Labor Code section 229 on which claims must be compelled to arbitration or whether the claims pending in the civil action that are not compelled to litigation should be stayed while claims that are not exempted by Labor Code section 229 are compelled to arbitration. Supplemental briefing as to this issue is necessary.

As to the class action waiver, Defendant argues (without citation to any case law) that the *Gentry* factors require consideration of admissible evidence rather than counsel's conclusions. Counsel for Plaintiff concludes the amounts sought by Plaintiff are modest based on his experience in most wage and hour cases. But with that limited analysis, no class action waiver could ever be enforced in California. That is not what *Gentry* holds.